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2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR
HOUSE BILL NO. 4118

By: West (Tammy), **Stark, Pae,
Chapman, Hefner, Moore,
Luttrell, Townley, Gise,
Bashore, Clinton, Pfeiffer,
Fetgatter, Provenzano,
Schreiber, and Boles** of the
House

and

Hall of the Senate

COMMITTEE SUBSTITUTE

[family caregiver credit - mileage - expenditures -
age - definitions - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 2, Chapter 20, 1st
Extraordinary Session, O.S.L. 2023 (68 O.S. Supp. 2025, Section
2357.801), is amended to read as follows:

Section 2357.801. A. As used in this section:

1. "Activities of daily living (ADL)" shall include:

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- a. ambulating, which is the extent of an individual's ability to move from one position to another and walk independently,
- b. feeding, which is the ability of an individual to feed oneself,
- c. dressing, which is the ability to select appropriate clothes and to put the clothes on without aid,
- d. personal hygiene, which is the ability to bathe and groom oneself and maintain dental hygiene and nail and hair care,
- e. continence, which is the ability to control bladder and bowel function, and
- f. toileting, which is the ability to get to and from the toilet without aid, using it appropriately, and cleaning oneself;

2. "Eligible expenditure" shall include:

- a. the improvement or alteration to the family caregiver's or eligible family member's primary residence to permit the eligible family member to live in the residence and to remain mobile, safe, and independent,
- b. the family caregiver's purchase or lease of equipment, including but not limited to durable medical equipment, that is necessary to assist an eligible

- 1 family member in carrying out one or more activities
2 of daily living (ADL), and
- 3 c. other paid or incurred expenses by the family
4 caregiver that assist the family caregiver in
5 providing care to an eligible family member, such as
6 expenditures related to:
- 7 (1) hiring a home care aide,
 - 8 (2) respite care,
 - 9 (3) adult day care,
 - 10 (4) personal care attendants,
 - 11 (5) health care equipment, and
 - 12 (6) technology.

13 The eligible expenditure ~~must~~ shall be directly related to assisting
14 the family caregiver in providing care to an eligible family member.
15 This includes any mileage for driving the eligible family member to
16 and from medical appointments. Calculate the estimated mileage at
17 the IRS standard rate for medical and dental expenses for the
18 applicable tax year. Eligible expenditure shall not include the
19 carrying out of general household maintenance activities such as
20 painting, plumbing, electrical repairs, or exterior maintenance;

21 3. "Eligible family member" shall mean an individual who:

- 22 a. ~~is sixty-two (62) years of age or older,~~
- 23 ~~b.~~ requires assistance with at least two activities of
24 daily living (ADL) as certified by a licensed health

care provider, as defined in paragraph 1 of Section
3090.2 of Title 63 of the Oklahoma Statutes,

~~e.~~

b. qualifies as a dependent, spouse, parent, or other
relation by blood or marriage to the family caregiver,
and

~~d.~~

c. lives in a private residential home and not in an
assisted living center, nursing facility, or
residential care home; and

4. "Family caregiver" shall mean an individual:

a. providing care and support for an eligible family
member,

b. who has a federal adjusted gross income of less than
~~Fifty Thousand Dollars (\$50,000.00)~~ Seventy-five
Thousand Dollars (\$75,000.00) for an individual and
less than ~~One Hundred Thousand Dollars (\$100,000.00)~~
One Hundred Fifty Thousand Dollars (\$150,000.00) for a
couple filing jointly, and

c. who has personally incurred uncompensated expenses
directly related to the care of an eligible family
member.

B. For taxable years beginning after December 31, 2023, there
shall be allowed a credit against the tax imposed pursuant to

1 Section 2355 of Title 68 of the Oklahoma Statutes in the amount of
2 fifty percent (50%) for eligible expenditures incurred by a family
3 caregiver for the care and support of an eligible family member.

4 C. The maximum allowable credit authorized by this section
5 shall be ~~Two Thousand Dollars (\$2,000.00) unless the eligible family~~
6 ~~member is a veteran or has a diagnosis of dementia in which case the~~
7 ~~maximum allowable credit shall be~~ Three Thousand Dollars
8 (\$3,000.00). If two or more family caregivers claim the tax credit
9 authorized by this section for the same eligible family member, the
10 maximum allowable credit shall be allocated in equal amounts between
11 each of the family caregivers.

12 D. The credit authorized by this section ~~may~~ shall not be used
13 to reduce the tax liability of the taxpayer to less than zero (0).
14 The credit shall not be carried over.

15 E. The total credits authorized pursuant to this section for
16 all taxpayers shall not exceed One Million Five Hundred Thousand
17 Dollars (\$1,500,000.00) annually. In the event the total tax
18 credits authorized by this section exceed One Million Five Hundred
19 Thousand Dollars (\$1,500,000.00) annually in any calendar year, the
20 Oklahoma Tax Commission shall permit any excess over One Million
21 Five Hundred Thousand Dollars (\$1,500,000.00) annually, but shall
22 factor such excess into the percentage adjustment formula for
23 subsequent years. The Oklahoma Tax Commission shall annually
24 calculate and publish by the first day of the affected year a

1 percentage by which the credits authorized by this section shall be
2 reduced so the total amount of credits used to offset tax does not
3 exceed One Million Five Hundred Thousand Dollars (\$1,500,000.00)
4 annually per year. The formula to be used for the percentage
5 adjustment shall be One Million Five Hundred Thousand Dollars
6 (\$1,500,000.00) annually divided by the credits claimed in the
7 second preceding year.

8 F. The Oklahoma Tax Commission shall promulgate rules necessary
9 to implement and administer the credit authorized by this section.

10 SECTION 2. This act shall become effective November 1, 2026.

11
12 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
13 03/05/2026 - DO PASS, As Amended and Coauthored.
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